

The below form is made available for general informational purposes only, and is not intended to constitute specific legal advice or to be a substitute for advice from qualified counsel. Attachment 1 MASTER TERMS AND CONDITIONS SOFTWARE-AS-A-SERVICE AGREEMENT1 These Master Terms and Conditions are made and entered into on this ____ day of _____, 20[] (the "Effective Date"), by and between [COMPANY], a [_____] corporation with its principal offices located at [_____] ("SaaS Provider") and [CLIENT] with its principal office located at [_____] ("Client"), (each, a "Party" and collectively, the "Parties"). These Master Terms and Conditions and the Order(s), Statement(s) of Work, and Exhibits attached hereto or referencing these Master Terms and Conditions are collectively referred to as the "Agreement."2

1. DEFINITIONS. 1.1 "Affiliate" means, with respect to any entity, any other present or future entity controlling, controlled by, or under common control with such entity. For the purposes of this definition, control (and its derivatives) means, with respect to any entity, the possession, direct or indirect, of the power to solely direct or cause the direction of the management or policies of such entity, whether through the ownership of voting securities (or other ownership interest), by contract or otherwise. 1.2 "Application Platform" or "Platform" means SaaS Provider's proprietary application software and/or web-site, including all modules, functions, features identified in an Order, SOW, or otherwise generally made available by SaaS Provider to its customers, and all technology resources and infrastructure (e.g., hardware, third party software, etc.) supporting the Services. The Application Platform includes all updates, releases, improvements, and corrections to the Application Platform. 1.3 "Cardholder Data" has the meaning provided in the PCI-DSS3, including (1) with respect to a payment card or similar data, the account holder's name, account number, service code, card validation code/value, PIN or PIN block, valid to and from dates and magnetic stripe data; and (2) information relating to a payment card transaction that is identifiable with a specific account.

1.4 "Client Data" means any proprietary or confidential content, information, data and materials of any kind, including End User Data4 and Cardholder Data, which is provided to or processed by SaaS Provider in connection with its provision of the Services. 1 This form is fairly generic, and somewhat customer-favorable. Certain possible reactions to these provisions are set out in the footnotes. This form is presented solely as a starting point and would need to be tailored to each specific negotiation and fact pattern. This form is not meant to be and is not legal advice. 2The structure of this form is a master agreement with orders under it. 3This form assumes payment is processed by the provider, and therefore credit data would need to be handled using this standard. In each case, the applicable data protection regimes would need to be considered (GLBA, HIPAA, etc.). The customer needs to understand what its data protection needs are, and provider needs to be clear on whether it can comply. 4 The End User Data-related provisions would need to be updated to cover GDPR and/or CCPA, as applicable. 1 ACC FORM The Information is made available for general informational purposes only, and is not intended to constitute specific legal advice or to be a substitute for advice from qualified counsel. 1.5 "Confidential Information" means any and all technical, business, client or proprietary information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party"), directly or indirectly, including, but not limited to, information regarding the Disclosing Party's business strategies and practices, methodologies, trade secrets, know-how, pricing, technology, software, product plans, services, relationships with any third party, client lists and information regarding the Disclosing Party's employees, clients, vendors, consultants and Affiliates regardless of whether such information is marked "confidential" or some other proprietary designation, but which by its nature is information that would reasonably be considered to be confidential information of the Disclosing Party. In the case of SaaS Provider,

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Confidential Information includes the Application Platform source code. In the case of Client, Confidential Information includes all Client Data and any information relating to Client's users. 1.6 "Data Center" means the secure facility(ies) in which the servers, computer equipment and ancillary hardware used to host and operate the Application Platform reside. The primary Data Center(s) is/are located in [_____] and the secondary Data Center(s) is/are located in [_____] as of the Effective Date, as each may be updated in accordance with this Agreement.5 1.7 "Documentation" means SaaS Provider's user guides and manuals relating to the Services and Application Platform, including on-line help, as updated and amended from time to time.